



TICKETING SERVICES AGREEMENT

PLEASE READ THIS TICKETING SERVICES AGREEMENT CAREFULLY. THIS AGREEMENT CONTAINS IMPORTANT INFORMATION REGARDING YOUR RIGHTS, OBLIGATIONS, REPRESENTATIONS, WARRANTIES, INDEMNITIES, LIMITATIONS OF LIABILITY, DISPUTE RESOLUTION MECHANISMS, AND OTHER LEGAL TERMS GOVERNING YOUR USE OF THE TICPIN PLATFORM. BY CLICKING THE "ACCEPT" BUTTON, CREATING AN ORGANISER ACCOUNT, LISTING AN EVENT, OR OTHERWISE USING THE SERVICES PROVIDED BY TICPIN, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREED TO BE LEGALLY BOUND BY THIS AGREEMENT. IF YOU DO NOT AGREE TO THE TERMS OF THIS AGREEMENT, YOU MUST NOT USE THE TICPIN PLATFORM OR ANY SERVICES PROVIDED THROUGH IT.

This Ticketing Services Agreement ("Agreement") is entered into between:

VELRONA TECHNOLOGIES PRIVATE LIMITED, a company incorporated under the Companies Act, 2013 and having its registered office at 1st Floor, 22B Kambar Street, Kamatchipuram, Ondipudur, Coimbatore – 641016, operating under the brand name "Ticpin" (hereinafter referred to as "Ticpin", which expression shall include its successors and permitted assigns);

AND

The individual, proprietorship concern, partnership firm, limited liability partnership, company, trust, society, association, or other legal entity registering, publishing, hosting, promoting, or selling tickets for Events through the Ticpin Platform (hereinafter referred to as the "Organiser", which expression shall include its successors, legal representatives, and permitted assigns). Ticpin and the Organiser shall hereinafter be collectively referred to as the "Parties" and individually as a "Party".

1. DEFINITIONS AND INTERPRETATION

1.1 "Affiliate" shall mean any entity that directly or indirectly controls, is controlled by, or is under common control with a Party.

1.2 "Agreement" shall mean this Ticketing Services Agreement together with all schedules, annexures, policies, guidelines, amendments, and documents incorporated herein by reference.

1.3 "Applicable Laws" shall mean all laws, statutes, regulations, notifications, circulars, judicial decisions, governmental orders, directives, and regulatory requirements applicable in India.

1.4 "Business Day" shall mean any day other than a Saturday, Sunday, or public holiday on which banks are open for business in India.

1.5 "Customer" shall mean any individual who purchases, reserves, registers for, receives, or otherwise acquires a Ticket through the Ticpin Platform.

1.6 "Customer Data" shall mean all information relating to Customers collected through the Ticpin Platform, including names, email addresses, phone numbers, transaction details, attendance information, and any personally identifiable information.

1.7 "Event" shall mean any concert, exhibition, festival, conference, seminar, workshop, sports event, educational program, entertainment activity, virtual event, dining experience, community gathering, or any other activity listed on the Ticpin Platform.

1.8 "Net Revenue" shall mean the gross ticket revenue collected through the Platform after deduction of Platform Fees, refunds, chargebacks, reversals, taxes, and other lawful deductions.

1.9 "Platform Fee" shall mean six percent (6%) inclusive of applicable taxes charged by Ticpin on the gross value of Tickets sold through the Platform.

1.10 "Services" shall mean ticketing, registration, payment facilitation, attendee management, QR validation, reporting, settlement support, marketing support, and related services provided by Ticpin.

1.11 "Ticket" shall mean a digital ticket, QR code, pass, reservation, or other credential issued through the Platform granting access to an Event.

1.12 "Ticpin Platform" shall mean the website, mobile applications, organiser dashboards, APIs, QR validation systems, software, infrastructure, and associated technologies operated by Ticpin.

2. SERVICES PROVIDED BY TICPIN

2.1 Ticpin shall provide the Organiser with access to the Platform for listing and managing Events.

2.2 Ticpin shall facilitate the sale and distribution of Tickets through the Platform.

2.3 Ticpin shall provide ticket inventory management tools and attendee reporting facilities.

2.4 Ticpin shall generate QR code-based Tickets and provide ticket validation services.

2.5 Ticpin shall provide an Organiser Dashboard through which the Organiser may monitor sales, attendance, settlements, and customer information.

2.6 Ticpin may provide promotional and marketing support for Events.

2.7 Ticpin may, at its sole discretion, provide discounts, rewards, offers, cashback promotions, or other customer acquisition initiatives at its own cost where Ticpin determines that such promotions are commercially viable.

2.8 Organisers may issue complimentary Tickets through the Platform subject to operational limitations and platform policies.

2.9 Ticpin shall use commercially reasonable efforts to maintain Platform availability on a twenty-four (24) hour, seven (7) day basis, except during maintenance periods, emergencies, or Force Majeure Events.

2.10 Ticpin acts solely as a technology and ticketing intermediary and shall not be responsible for Event execution, venue management, artist performance, crowd management, security arrangements, transportation, accommodation, food and beverage services, or any other operational aspect of the Event.

3. ORGANISER OBLIGATIONS

3.1 Appointment of Ticpin

The Organiser hereby appoints Ticpin as a non-exclusive ticketing platform for the listing, promotion, registration, sale, distribution, and management of Tickets relating to the Event.

3.2 Event Information

The Organiser shall provide complete, accurate, current, and non-misleading information relating to the Event, including but not limited to Event description, venue details, schedule, ticket pricing, seating information, age restrictions, entry requirements, artist details, refund terms, and any other information reasonably required by Ticpin.

3.3 Accuracy of Content

The Organiser shall ensure that all content submitted to Ticpin, including text, images, videos, promotional materials, advertisements, and Event-related communications, is accurate and does not contain any false, misleading, deceptive, defamatory, unlawful, or infringing material.

3.4 Event Permissions

The Organiser shall obtain and maintain all licenses, permits, permissions, approvals, registrations, clearances, authorisations, and no-objection certificates required from governmental authorities, venue owners, licensors, rights holders, and other third parties for conducting the Event.

3.5 Compliance with Applicable Laws

The Organiser shall comply with all Applicable Laws relating to the planning, promotion, organisation, management, and execution of the Event.

3.6 Venue Compliance

The Organiser shall ensure that the Event venue complies with all fire safety regulations, occupancy restrictions, building requirements, health regulations, public safety standards, and governmental requirements applicable to the Event.

3.7 Ticket Inventory

The Organiser shall provide Ticpin with accurate and updated ticket inventory information including ticket categories, quantities, pricing, availability, seating plans, and any restrictions applicable to Tickets.

3.8 Event Execution

The Organiser shall be solely responsible for organising, managing, supervising, and executing the Event and shall ensure that the Event is conducted in accordance with the information published on the Ticpin Platform.

3.9 Customer Admission

The Organiser shall honour all valid Tickets issued through the Ticpin Platform and shall permit entry to Customers holding valid Tickets, subject only to lawful restrictions and published Event policies.

3.10 Customer Experience

The Organiser shall use commercially reasonable efforts to ensure a satisfactory Event experience for Customers and shall address customer concerns promptly and professionally.

3.11 Event Personnel

The Organiser shall be solely responsible for all performers, artists, speakers, vendors, exhibitors, contractors, suppliers, volunteers, employees, and agents engaged for the Event.

3.12 Professional Conduct

The Organiser shall ensure that all Event personnel conduct themselves professionally and comply with Applicable Laws and Event policies.

3.13 Insurance

The Organiser shall maintain adequate insurance coverage appropriate to the nature, scale, and risk profile of the Event, including public liability insurance where applicable.

3.14 Health and Safety

The Organiser shall implement and maintain appropriate health, safety, and emergency procedures for the protection of Customers, staff, vendors, performers, and other attendees.

3.15 Security Arrangements

The Organiser shall arrange and maintain adequate security personnel and security procedures appropriate to the nature and expected attendance of the Event.

3.16 Medical Arrangements

Where reasonably required, the Organiser shall ensure the availability of first-aid facilities, medical personnel, ambulances, emergency response equipment, and emergency evacuation procedures.

3.17 Event Changes

The Organiser shall promptly notify Ticpin of any cancellation, postponement, rescheduling, venue change, performer change, ticket pricing modification, or any material change affecting the Event.

3.18 Intellectual Property Rights

The Organiser shall ensure that all intellectual property used in connection with the Event is lawfully owned, licensed, authorised, or otherwise permitted for use.

3.19 Copyright Compliance

The Organiser shall obtain all necessary music licenses, performance licenses, content licenses, broadcasting permissions, and intellectual property clearances required for the Event.

3.20 Taxes

The Organiser shall be solely responsible for all taxes, duties, levies, charges, fees, and statutory obligations applicable to the Event and its operations.

3.21 Banking Information

The Organiser shall provide accurate and complete banking information for settlement purposes and shall promptly notify Ticpin of any changes.

3.22 Customer Communications

The Organiser shall cooperate with Ticpin in responding to customer inquiries, complaints, refund requests, and service issues.

3.23 Event Policies

The Organiser shall clearly communicate all Event policies, restrictions, prohibited items, age requirements, dress codes, entry conditions, and safety requirements to Customers.

3.24 Prohibited Activities

The Organiser shall not organise, promote, list, or facilitate Events involving unlawful activities, fraudulent schemes, prohibited goods or services, hate speech, violence, exploitation, or activities prohibited under Applicable Laws.

3.25 No Misrepresentation

The Organiser shall not make any representation regarding Ticpin that is false, misleading, unauthorised, or likely to damage Ticpin's reputation.

3.26 Platform Usage

The Organiser shall use the Ticpin Platform solely for legitimate Event management purposes and shall not interfere with, disrupt, reverse engineer, or misuse the Platform.

3.27 Data Protection

The Organiser shall handle Customer Data strictly in accordance with this Agreement, Applicable Laws, and Ticpin policies.

3.28 Fraud Prevention

The Organiser shall take reasonable measures to prevent fraud, counterfeit tickets, unauthorised resales, duplicate entries, and other abusive practices relating to the Event.

3.29 Record Maintenance

The Organiser shall maintain complete and accurate records relating to the Event and shall provide such records to Ticpin upon reasonable request.

3.30 Cooperation

The Organiser shall provide all information, documents, support, access, and assistance reasonably required by Ticpin for the provision of Services.

3.31 Complaints and Investigations

The Organiser shall cooperate fully with Ticpin in relation to customer complaints, governmental inquiries, legal proceedings, investigations, audits, or regulatory actions relating to the Event.

3.32 Event Quality

The Organiser acknowledges that the reputation of Ticpin may be affected by the quality of Events listed on the Platform and shall use commercially reasonable efforts to maintain high standards of Event quality and customer satisfaction.

3.33 No Guarantee by Ticpin

The Organiser acknowledges and agrees that Ticpin does not guarantee ticket sales, attendance levels, profitability, sponsorship revenue, audience engagement, or the commercial success of any Event.

3.34 Responsibility for Event Risks

The Organiser shall be solely responsible for all risks associated with the Event, including risks relating to customer injuries, property damage, crowd management, operational failures, weather conditions, performer cancellations, venue issues, and third-party claims.

3.35 Compliance with Ticpin Policies

The Organiser shall comply with all policies, guidelines, standards, operational requirements, platform rules, settlement procedures, refund procedures, and other instructions issued by Ticpin from time to time.

3.36 Right of Suspension

The Organiser acknowledges and agrees that Ticpin may immediately suspend, restrict, remove, deactivate, or terminate any Event listing, Ticket inventory, Organiser account, or access to the Platform without prior notice where Ticpin reasonably believes that such action is necessary to prevent fraud, protect Customers, comply with Applicable Laws, mitigate operational risks, address safety concerns, protect Ticpin's reputation, or enforce this Agreement.

3.37 Survival of Obligations

The obligations of the Organiser relating to compliance, customer protection, indemnification, refunds, confidentiality, intellectual property, taxes, data protection, and dispute resolution shall survive the termination or expiration of this Agreement to the extent necessary to give effect to their intended purpose.

4. CANCELLATION, REFUNDS AND RESCHEDULING

4.1 Event Cancellation by Organiser

The Organiser may cancel an Event by providing written notice to Ticpin through the Organiser Dashboard, registered email address, or such other communication channels as may be prescribed by Ticpin from time to time.

4.2 Immediate Notification Obligation

The Organiser shall immediately notify Ticpin upon becoming aware of any circumstance that may reasonably result in the cancellation, postponement, suspension, interruption, or material modification of the Event.

4.3 Refund Policy Incorporation

The Organiser acknowledges and agrees that the refund policy published by Ticpin on its Platform, as amended from time to time, shall form an integral and binding part of this Agreement and shall govern all refund-related matters unless otherwise expressly approved in writing by Ticpin.

4.4 Event-Specific Refund Policies

The Organiser may establish Event-specific refund policies only with the prior approval of Ticpin and provided such policies do not conflict with the Ticpin Refund Policy or Applicable Laws.

4.5 Responsibility for Refunds

The Organiser shall be solely responsible for all refund obligations arising from cancellation, postponement, rescheduling, non-performance, partial performance, venue changes, artist cancellations, regulatory restrictions, or any other Event-related circumstances.

4.6 Refund Processing by Ticpin

Ticpin may, at its sole discretion, facilitate the processing of refunds on behalf of the Organiser. Such facilitation shall not transfer refund liability from the Organiser to Ticpin.

4.7 Funding of Refunds

The Organiser authorises Ticpin to utilise Event revenues, settlement balances, reserves, future settlements, security deposits, or any other monies payable to the Organiser for the purpose of processing refunds.

4.8 Insufficient Funds

Where available settlement balances are insufficient to satisfy refund obligations, the Organiser shall remit the required funds to Ticpin within three (3) Business Days of receiving a written demand from Ticpin.

4.9 Customer Communications

Ticpin may communicate directly with Customers regarding Event cancellations, refunds, rescheduling, venue changes, or related matters, and the Organiser authorises Ticpin to issue such communications as deemed necessary.

4.10 Event Rescheduling

The Organiser may reschedule an Event subject to prior notification to Ticpin and compliance with the refund framework applicable to the Event.

4.11 Publication of Revised Information

Upon rescheduling, the Organiser shall provide revised Event details including the updated date, time, venue, lineup, schedule, and other material information necessary for Customers to make informed decisions.

4.12 Customer Rights in Rescheduled Events

Customers affected by a rescheduled Event shall be entitled to such remedies, options, credits, transfers, refunds, or accommodations as may be specified under the Ticpin Refund Policy or Applicable Laws.

4.13 Venue Changes

The Organiser shall promptly notify Ticpin of any venue changes and shall ensure that any replacement venue is suitable, safe, legally compliant, and reasonably capable of accommodating affected Customers.

4.14 Material Event Modifications

Where the Organiser materially modifies an Event, including changes to headlining artists, performers, speakers, content, timing, venue, duration, or format, Ticpin may determine that such modification constitutes a cancellation or rescheduling event for the purposes of refund eligibility.

4.15 Chargebacks

The Organiser shall remain solely liable for all chargebacks, payment reversals, banking disputes, card disputes, fraud claims, and transaction disputes arising from or relating to the Event.

4.16 Refund Deductions

Ticpin may deduct refund amounts, processing charges, chargebacks, banking costs, legal costs, dispute management expenses, and related losses from any amounts payable to the Organiser.

4.17 Regulatory Orders

If any governmental authority, court, regulatory body, law enforcement agency, or statutory authority requires cancellation, suspension, postponement, restriction, or modification of an Event, the Organiser shall comply with such requirements and remain responsible for all resulting refund obligations.

4.18 Force Majeure Events

Where cancellation, postponement, or disruption occurs due to a Force Majeure Event, refund eligibility shall be determined in accordance with the Ticpin Refund Policy, Applicable Laws, and the specific circumstances of the Event.

4.19 Fraudulent Activities

If Ticpin reasonably suspects fraudulent conduct, misrepresentation, unlawful activity, ticket manipulation, artificial ticket inflation, unauthorised resale, or any activity that may adversely affect Customers or Ticpin, Ticpin may suspend ticket sales, freeze settlements, process refunds, and take such actions as it deems necessary to protect Customers and the Platform.

4.20 No Liability of Ticpin

Ticpin shall not be liable for any loss, damage, expense, claim, liability, penalty, reputational harm, business interruption, or consequential loss suffered by the Organiser arising from Event cancellations, postponements, rescheduling, refunds, chargebacks, venue issues, performer withdrawals, regulatory restrictions, customer claims, or other Event-related circumstances.

4.21 Organiser Indemnity for Refund Claims

The Organiser shall defend, indemnify, and hold harmless Ticpin from and against all claims, proceedings, disputes, liabilities, damages, costs, expenses, penalties, and legal fees arising out of or relating to refunds, chargebacks, cancellation disputes, rescheduling disputes, or customer complaints associated with the Event.

4.22 Refund Records and Reconciliation

The Organiser acknowledges that Ticpin's records, transaction logs, payment gateway reports, refund reports, settlement statements, and system records shall constitute prima facie evidence of all refund-related transactions unless proven otherwise through clear documentary evidence.

4.23 Survival

The rights and obligations contained in this Clause shall survive the cancellation of an Event, termination of the Organiser account, expiration of this Agreement, and completion of the Event until all refund obligations, chargebacks, disputes, and related claims have been fully resolved.

5. COMMERCIAL TERMS

5.1 Platform Fee

In consideration of the Services provided by Ticpin under this Agreement, the Organiser agrees that Ticpin shall be entitled to charge and retain a Platform Fee equal to six percent (6%) inclusive of applicable taxes on the gross value of all paid Tickets sold through the Ticpin Platform.

5.2 Acceptance of Commercial Terms

The Organiser acknowledges and agrees that the Platform Fee constitutes valid consideration for the Services provided by Ticpin and shall be payable irrespective of the commercial success or profitability of the Event.

5.3 Collection of Ticket Revenues

Ticpin shall facilitate the collection of ticket sale proceeds through authorised payment gateway providers, banking partners, UPI systems, card networks, and other payment channels integrated with the Platform.

5.4 Appointment as Collection Agent

The Organiser hereby authorises Ticpin to collect ticket sale proceeds on its behalf solely for the purposes contemplated under this Agreement and to distribute settlements in accordance with the terms herein.

5.5 Settlement Cycle

Subject to reconciliation, deductions, refunds, chargebacks, and compliance requirements, Ticpin shall process settlement of Net Revenue payable to the Organiser within two (2) Business Days following successful completion of the Event.

5.6 Settlement Date

The settlement timeline shall commence only after:

5.6.1 The Event has been successfully completed.

5.6.2 No material disputes have been reported relating to the Event.

5.6.3 The Organiser has provided complete and valid banking information.

5.6.4 All verification, compliance, fraud prevention, and reconciliation processes have been completed.

5.7 Net Revenue

For the purposes of this Agreement, Net Revenue shall mean the gross ticket sale proceeds collected through the Ticpin Platform after deduction of:

5.7.1 Platform Fees.

5.7.2 Refunds.

5.7.3 Chargebacks.

5.7.4 Payment reversals.

5.7.5 Fraud-related losses.

5.7.6 Applicable taxes.

5.7.7 Government-mandated deductions.

5.7.8 Banking charges and payment processing charges where applicable.

5.7.9 Amounts recoverable by Ticpin under this Agreement.

5.8 Settlement Statement

Ticpin shall make available through the Organiser Dashboard a settlement statement containing details of ticket sales, refunds, deductions, taxes, chargebacks, and Net Revenue payable.

5.9 Organiser Review Period

The Organiser shall review settlement statements promptly and notify Ticpin of any discrepancy within seven (7) Business Days of receipt, failing which such statement shall be deemed accepted.

5.10 Taxes

Each Party shall be solely responsible for its respective tax obligations arising under Applicable Laws.

5.11 Organiser Taxes

The Organiser shall be solely responsible for payment of GST, income tax, entertainment tax, local taxes, venue taxes, and any other statutory obligations arising from the Event.

5.12 Tax Compliance

The Organiser shall provide all tax registrations, GST details, PAN information, declarations, certificates, and documents reasonably required by Ticpin for compliance purposes.

5.13 Tax Deductions

Ticpin may deduct taxes, withholding taxes, tax collected at source, tax deducted at source, or other statutory deductions as required by Applicable Laws.

5.14 Payment Method

Settlement shall be made through bank transfer, electronic funds transfer, UPI, or any other payment mechanism approved by Ticpin.

5.15 Banking Information

The Organiser shall ensure that all banking information provided to Ticpin remains accurate, complete, and up to date throughout the Term of this Agreement.

5.16 Incorrect Banking Information

Ticpin shall not be liable for delays, losses, reversals, failed transfers, or settlement errors resulting from inaccurate, incomplete, or outdated banking information supplied by the Organiser.

5.17 Complimentary Tickets

The Organiser may issue complimentary Tickets through the Ticpin Platform subject to operational limitations, technical feasibility, and policies prescribed by Ticpin from time to time.

5.18 Complimentary Ticket Controls

Ticpin reserves the right to impose reasonable restrictions on the quantity, categories, issuance procedures, and management of complimentary Tickets where necessary for operational, compliance, or reporting purposes.

5.19 Promotional Campaigns

Ticpin may, at its sole discretion, undertake promotional campaigns, discount programs, cashback initiatives, loyalty rewards, coupon campaigns, marketing offers, referral programs, or customer acquisition initiatives relating to an Event.

5.20 Ticpin-Funded Promotions

Where Ticpin independently chooses to provide discounts, promotional benefits, cashback, offers, coupons, loyalty rewards, or marketing incentives, such benefits shall generally be funded by Ticpin and shall not reduce amounts otherwise payable to the Organiser unless expressly agreed in writing.

5.21 Commercial Viability

The Organiser acknowledges that Ticpin may evaluate ticket sales performance, expected revenue, customer demand, Event category, and profitability before determining whether to undertake promotional activities at its own expense.

5.22 Right to Refuse Promotions

Nothing in this Agreement shall obligate Ticpin to provide promotional support, discounts, featured placements, advertising campaigns, or marketing assistance for any Event.

5.23 Chargebacks and Payment Disputes

The Organiser shall remain solely liable for all chargebacks, payment disputes, card reversals, banking reversals, fraud claims, unauthorised transaction claims, and customer disputes relating to the Event.

5.24 Recovery Rights

Ticpin may recover amounts owed by the Organiser through deduction from current settlements, future settlements, reserves, deposits, refunds, credits, or any other monies payable to the Organiser.

5.25 Right to Withhold Settlements

Ticpin may temporarily withhold settlements where reasonably necessary to:

5.25.1 Investigate suspected fraud.

5.25.2 Address chargebacks or customer disputes.

5.25.3 Comply with legal or regulatory requirements.

5.25.4 Verify Event completion.

5.25.5 Protect Customers or the Platform.

5.25.6 Recover outstanding liabilities owed by the Organiser.

5.26 Reserve Rights

Ticpin may establish reasonable reserves from settlement amounts where necessary to address anticipated refunds, chargebacks, legal liabilities, regulatory requirements, or financial risks associated with an Event.

5.27 No Interest

The Organiser shall not be entitled to interest on any settlement amounts held, withheld, reserved, delayed, or retained by Ticpin in accordance with this Agreement.

5.28 Currency

All amounts under this Agreement shall be denominated, calculated, settled, and payable in Indian Rupees (INR).

5.29 Records

Ticpin's transaction logs, payment gateway records, settlement reports, accounting records, system-generated reports, and financial statements shall constitute prima facie evidence of transactions processed through the Platform.

5.30 Survival

The provisions of this Clause relating to payments, settlements, deductions, chargebacks, taxes, audits, recoveries, and financial obligations shall survive the termination or expiration of this Agreement until all outstanding obligations have been fully discharged.

6. CUSTOMER DATA

6.1 Ownership of Customer Data

The Organiser acknowledges and agrees that all Customer Data collected, generated, processed, stored, transmitted, or otherwise obtained through the Ticpin Platform shall remain the sole and exclusive property of Ticpin.

6.2 Definition of Customer Data

For the purposes of this Agreement, "Customer Data" shall include all information relating to Customers collected through the Ticpin Platform, including but not limited to names, email addresses, phone numbers, addresses, transaction records, ticket purchase history, attendance information, behavioural analytics, booking preferences, payment information, device information, demographic information, and any other personally identifiable information.

6.3 Limited License to Organiser

Subject to the terms of this Agreement, Ticpin grants the Organiser a limited, non-exclusive, non-transferable, revocable right to access Customer Data solely for the purpose of managing and operating the Event.

6.4 Permitted Use

The Organiser shall use Customer Data exclusively for purposes directly related to the Event, including ticket validation, attendee management, event communication, customer support, operational planning, and compliance with Applicable Laws.

6.5 Prohibited Use

The Organiser shall not use Customer Data for any purpose other than those expressly permitted under this Agreement.

6.6 Sale of Customer Data

The Organiser shall not sell, rent, lease, license, distribute, transfer, disclose, commercialise, monetise, or otherwise exploit Customer Data for financial gain or commercial benefit.

6.7 Third-Party Disclosure

The Organiser shall not disclose Customer Data to any third party except where required by Applicable Laws or expressly authorised in writing by Ticpin.

6.8 Marketing Restrictions

The Organiser shall not use Customer Data for unsolicited marketing, promotional campaigns, advertising activities, remarketing initiatives, or unrelated business purposes without obtaining all legally required consents and Ticpin's prior written approval.

6.9 Confidentiality of Customer Data

The Organiser shall maintain strict confidentiality of all Customer Data and shall implement appropriate administrative, technical, and physical safeguards to prevent unauthorised access, disclosure, modification, loss, misuse, or destruction of Customer Data.

6.10 Compliance with Privacy Laws

The Organiser shall comply with all Applicable Laws relating to privacy, data protection, cybersecurity, electronic communications, and processing of personal information.

6.11 Security Measures

The Organiser shall implement and maintain industry-standard security measures to protect Customer Data against unauthorised access, theft, cyberattacks, malware, ransomware, accidental disclosure, corruption, or loss.

6.12 Data Breach Notification

The Organiser shall notify Ticpin immediately and in any event no later than twenty-four (24) hours after becoming aware of any actual, suspected, or potential unauthorised access, disclosure, loss, breach, compromise, or misuse of Customer Data.

6.13 Cooperation During Security Incidents

The Organiser shall cooperate fully with Ticpin in investigating, mitigating, responding to, and resolving any security incident, data breach, or unauthorised access relating to Customer Data.

6.14 Incident Reporting

Upon request by Ticpin, the Organiser shall provide a detailed written report describing the nature of the incident, affected data, root cause, corrective measures implemented, and future preventive actions.

6.15 Data Retention

The Organiser shall retain Customer Data only for the period reasonably necessary to fulfill the purposes permitted under this Agreement or as required by Applicable Laws.

6.16 Data Deletion

Upon completion of the Event, termination of this Agreement, or request by Ticpin, the Organiser shall promptly delete, destroy, or return Customer Data in its possession unless retention is required by Applicable Laws.

6.17 Audit Rights

Ticpin may request information, certifications, declarations, or evidence demonstrating the Organiser's compliance with this Clause, and the Organiser shall promptly provide such information.

6.18 Organiser Responsibility

The Organiser shall be solely responsible for all acts, omissions, negligence, misconduct, breaches, and violations committed by its employees, contractors, agents, vendors, affiliates, consultants, service providers, and representatives relating to Customer Data.

6.19 Indemnification

The Organiser shall defend, indemnify, and hold harmless Ticpin, its directors, officers, employees, affiliates, and representatives from and against all claims, losses, liabilities, damages, penalties, fines, costs, expenses, and legal fees arising out of or relating to:

6.19.1 Any unauthorised use of Customer Data by the Organiser.

6.19.2 Any breach of privacy obligations under this Agreement.

6.19.3 Any violation of Applicable Laws relating to Customer Data.

6.19.4 Any data breach, cybersecurity incident, unauthorised disclosure, or misuse of Customer Data attributable to the Organiser.

6.20 Platform Analytics and Insights

The Organiser acknowledges that all customer analytics, behavioural insights, ticketing trends, attendance patterns, transaction histories, platform intelligence, predictive analytics, reporting systems, performance metrics, and related data generated through the Ticpin Platform shall remain the exclusive property of Ticpin.

6.21 No Ownership Rights

Nothing contained in this Agreement shall grant the Organiser any ownership interest, title, intellectual property right, database right, or proprietary right in or to Customer Data.

6.22 Regulatory Compliance Assistance

The Organiser shall provide all information and assistance reasonably required by Ticpin to comply with any legal, regulatory, governmental, judicial, or law enforcement request relating to Customer Data.

6.23 Suspension Rights

Ticpin may suspend, restrict, or terminate the Organiser's access to Customer Data immediately if Ticpin reasonably believes that the Organiser has violated this Clause or poses a risk to Customer privacy, security, or legal compliance.

6.24 Survival

The provisions of this Clause shall survive termination or expiration of this Agreement and shall remain binding upon the Organiser for so long as the Organiser retains, accesses, possesses, or has knowledge of any Customer Data obtained through the Ticpin Platform.

7. INTELLECTUAL PROPERTY RIGHTS

7.1 Ownership of Intellectual Property

Each Party shall retain all right, title, and interest in and to its respective Intellectual Property Rights. Nothing contained in this Agreement shall be construed as transferring ownership of any Intellectual Property Rights from one Party to the other.

7.2 Ticpin Intellectual Property

The Organiser acknowledges and agrees that Ticpin is the sole and exclusive owner of all rights, title, and interest in and to the Ticpin Platform, including but not limited to its software, source code, object code, applications, APIs, databases, QR systems, ticket validation technology, user interfaces, workflows, business methods, reports, algorithms, analytics, trademarks, logos, trade names, branding elements, documentation, and all related Intellectual Property Rights.

7.3 Organiser Intellectual Property

The Organiser shall retain ownership of all rights, title, and interest in and to its Event-related Intellectual Property, including Event names, Event logos, promotional materials, Event creatives, artwork, photographs, videos, trademarks, copyrights, and other proprietary materials lawfully owned or licensed by the Organiser.

7.4 License Granted to Ticpin

The Organiser hereby grants Ticpin a worldwide, non-exclusive, royalty-free, transferable, sublicensable license to use, reproduce, display, publish, distribute, modify, adapt, communicate, market, advertise, and otherwise exploit the Organiser's Event Intellectual Property solely for the purposes of:

7.4.1 Listing the Event on the Ticpin Platform.

7.4.2 Promoting and marketing the Event.

7.4.3 Generating Tickets and Event-related materials.

7.4.4 Performing Services under this Agreement.

7.4.5 Promoting Ticpin's business, platform, and services.

7.5 Event Marketing Rights

The Organiser authorises Ticpin to use Event names, Event descriptions, Event logos, photographs, videos, artist images, promotional creatives, and related content across websites, mobile applications, social media platforms, newsletters, advertisements, presentations, case studies, reports, and marketing campaigns.

7.6 Organiser Warranties

The Organiser represents and warrants that it possesses all necessary rights, permissions, licenses, approvals, and authorisations required to grant the rights and licenses contained in this Agreement.

7.7 No Infringement

The Organiser represents and warrants that the Event and all Event-related materials shall not infringe, violate, misappropriate, dilute, or otherwise interfere with the Intellectual Property Rights, privacy rights, publicity rights, contractual rights, or other rights of any third party.

7.8 Intellectual Property Compliance

The Organiser shall obtain and maintain all licenses relating to music, recordings, performances, copyrights, trademarks, broadcasting rights, publishing rights, content rights, image rights, and other intellectual property rights required for the Event.

7.9 Protection of Ticpin Intellectual Property

The Organizer shall not:

7.9.1 Copy, reproduce, duplicate, distribute, or exploit the Ticpin Platform.

7.9.2 Reverse engineer, decompile, disassemble, modify, or create derivative works from the Platform.

7.9.3 Attempt to access source code, algorithms, databases, infrastructure, or proprietary systems belonging to Ticpin.

7.9.4 Remove, alter, conceal, or interfere with any copyright notices, trademarks, branding, ownership notices, or proprietary markings displayed by Ticpin.

7.10 Platform Data and Analytics

All ticketing data, transaction data, customer insights, attendance patterns, analytics, performance reports, behavioural information, predictive models, platform intelligence, dashboards, and business insights generated through the Ticpin Platform shall remain the exclusive property of Ticpin.

7.11 Feedback Rights

Any suggestions, recommendations, feedback, comments, ideas, feature requests, improvements, innovations, or enhancements provided by the Organiser relating to the Ticpin Platform may be freely used, implemented, modified, commercialised, and exploited by Ticpin without restriction or compensation.

7.12 Publicity Rights

Ticpin may identify the Organiser as a user of the Platform and may use the Organiser's name, Event name, logos, and publicly available promotional materials for marketing, business development, investor communications, portfolio references, media publications, and promotional activities.

7.13 Infringement Claims

The Organiser shall immediately notify Ticpin upon becoming aware of any actual or suspected infringement, misuse, unauthorised use, counterfeiting, piracy, or violation of Ticpin's Intellectual Property Rights.

7.14 Intellectual Property Indemnity

The Organiser shall defend, indemnify, and hold harmless Ticpin and its affiliates, directors, officers, employees, agents, successors, and assigns from and against all claims, actions, proceedings, liabilities, damages, losses, costs, penalties, settlements, and legal expenses arising out of:

7.14.1 Any infringement or alleged infringement of third-party Intellectual Property Rights by the Organiser.

7.14.2 Any unauthorised use of copyrighted works, trademarks, music, content, recordings, performances, or other protected materials in connection with the Event.

7.14.3 Any breach of the representations, warranties, or obligations contained in this Clause.

7.15 Reservation of Rights

Except for the limited rights expressly granted under this Agreement, each Party reserves all rights, title, interests, claims, remedies, and Intellectual Property Rights not expressly granted to the other Party.

7.16 Survival

The provisions of this Clause shall survive termination, expiration, suspension, cancellation, or completion of the Event and shall continue to bind the Parties to the extent necessary to protect their respective Intellectual Property Rights.

8. REPRESENTATIONS AND WARRANTIES

8.1 Mutual Representations

Each Party represents and warrants to the other Party that:

8.1.1 It is duly organised, validly existing, and in good standing under the laws applicable to it.

8.1.2 It possesses the full legal right, authority, power, and capacity to enter into, execute, deliver, and perform its obligations under this Agreement.

8.1.3 The execution and performance of this Agreement shall not violate any Applicable Law, contractual obligation, court order, regulatory requirement, or obligation binding upon such Party.

8.1.4 This Agreement constitutes a valid, legal, and binding obligation enforceable against such Party in accordance with its terms.

8.2 Organiser Representations

The Organiser hereby represents, warrants, and undertakes that:

8.2.1 Authority

The Organiser possesses all necessary corporate approvals, governmental approvals, licenses, permits, permissions, authorisations, and consents required to enter into and perform this Agreement.

8.2.2 Event Legality

The Event is lawful and shall not violate any Applicable Laws, governmental orders, regulatory restrictions, or public policies.

8.2.3 Accuracy of Information

All information, documents, declarations, Event descriptions, pricing details, venue information, promotional materials, artist details, and content submitted to Ticpin are true, complete, accurate, current, and not misleading.

8.2.4 No Misrepresentation

The Organiser shall not make any false, misleading, deceptive, fraudulent, or inaccurate representations to Customers, government authorities, vendors, sponsors, or any third party.

8.2.5 Event Capability

The Organiser possesses the experience, capability, infrastructure, personnel, resources, and financial capacity necessary to organise, manage, and successfully conduct the Event.

8.2.6 Event Execution

The Organiser shall conduct the Event substantially in accordance with the information published on the Ticpin Platform.

8.2.7 Licenses and Permissions

The Organiser has obtained or shall obtain all licenses, permits, approvals, permissions, NOCs, registrations, and authorisations required for the Event before commencement of the Event.

8.2.8 Venue Rights

The Organiser possesses all necessary rights, permissions, leases, agreements, licenses, or authorisations required to use the Event venue for the intended purposes.

8.2.9 Compliance with Laws

The Organiser shall comply with all Applicable Laws relating to taxation, labor, employment, health and safety, crowd management, fire safety, entertainment, advertising, intellectual property, privacy, and consumer protection.

8.2.10 Taxes

The Organiser shall accurately report, collect, remit, and comply with all tax obligations arising from the Event.

8.3 Intellectual Property Representations

8.3.1 The Organiser owns or possesses valid licenses for all Event-related intellectual property used in connection with the Event.

8.3.2 The Event, Event materials, Event content, Event branding, promotional content, performances, and related materials do not infringe any Intellectual Property Rights of any third party.

8.3.3 The Organiser has obtained all required licenses relating to music, sound recordings, performances, copyrighted works, trademarks, artistic works, photographs, videos, and content utilised in connection with the Event.

8.3.4 The Organiser shall maintain such licenses and permissions throughout the duration of the Event.

8.4 Customer Protection Representations

8.4.1 The Organiser shall honour all valid Tickets sold through the Ticpin Platform.

8.4.2 The Organiser shall provide Customers access to the Event in accordance with the terms and conditions disclosed at the time of booking.

8.4.3 The Organiser shall not engage in fraudulent ticketing practices, deceptive advertising, artificial inventory manipulation, or misleading promotional activities.

8.4.4 The Organiser shall promptly address customer complaints, disputes, grievances, and operational issues relating to the Event.

8.5 Safety and Security Representations

8.5.1 The Organiser shall take all reasonable precautions necessary to ensure the safety, security, and welfare of Customers, staff, performers, contractors, and attendees.

8.5.2 The Organiser shall implement appropriate emergency response procedures, crowd management measures, and safety protocols.

8.5.3 The Organiser shall maintain suitable medical assistance, emergency response capabilities, and evacuation procedures where reasonably necessary.

8.5.4 The Organiser shall ensure that the Event venue complies with applicable safety and occupancy requirements.

8.6 Financial Representations

8.6.1 The Organiser is financially capable of fulfilling all obligations arising under this Agreement.

8.6.2 The Organiser shall maintain sufficient financial resources to satisfy refund obligations, chargebacks, taxes, penalties, customer claims, and liabilities arising from the Event.

8.6.3 The Organiser shall not engage in activities intended to evade payment obligations, refunds, taxes, fees, or liabilities.

8.7 No Litigation Representation

8.7.1 The Organiser represents that no pending litigation, arbitration, investigation, insolvency proceeding, bankruptcy proceeding, governmental action, or regulatory enforcement action exists that may materially impair its ability to perform its obligations under this Agreement.

8.7.2 The Organiser shall promptly notify Ticpin of any matter that may adversely affect the Organiser's ability to conduct the Event or comply with this Agreement.

8.8 Continuous Nature of Warranties

All representations and warranties contained in this Agreement shall be deemed repeated continuously throughout the Term of this Agreement and on each day that the Event remains listed on the Ticpin Platform.

8.9 Reliance by Ticpin

The Organiser acknowledges that Ticpin is entering into this Agreement and providing Services in reliance upon the representations, warranties, declarations, statements, and undertakings made by the Organiser under this Agreement.

8.10 Breach of Warranty

Any breach of a representation or warranty contained in this Agreement shall constitute a material breach of this Agreement and shall entitle Ticpin to suspend the Event, withhold settlements, process refunds, terminate the Organiser account, recover losses, and exercise any other rights available under this Agreement or Applicable Laws.

8.11 Disclaimer of Warranties by Ticpin

Except as expressly stated in this Agreement, the Ticpin Platform and Services are provided on an "as is" and "as available" basis.

8.12 No Revenue Guarantee

Ticpin does not warrant, guarantee, or represent that any Event shall achieve any specific level of ticket sales, attendance, revenue, profitability, sponsorship, publicity, or commercial success.

8.13 No Operational Guarantee

Ticpin does not warrant or guarantee the success, quality, safety, popularity, viability, or performance of any Event listed on the Platform.

8.14 Technology Disclaimer

While Ticpin shall use commercially reasonable efforts to maintain Platform availability, Ticpin does not warrant uninterrupted, error-free, secure, or continuous operation of the Platform.

8.15 Survival

The representations, warranties, undertakings, disclaimers, and obligations contained in this Clause shall survive termination or expiration of this Agreement to the extent necessary to protect the rights and interests of the Parties.

9. INDEMNIFICATION

9.1 Organiser Indemnity

The Organiser shall defend, indemnify, and hold harmless Ticpin, Velrona Technologies Private Limited, its Affiliates, subsidiaries, parent entities, directors, officers, employees, agents, representatives, consultants, shareholders, successors, and assigns (collectively, the "Ticpin Indemnified Parties") from and against any and all claims, demands, actions, proceedings, investigations, liabilities, losses, damages, penalties, fines, judgments, settlements, costs, expenses, and legal fees arising out of, relating to, or connected with:

9.1.1 Any breach, violation, non-compliance, or default by the Organiser under this Agreement.

9.1.2 Any violation of Applicable Laws by the Organiser, its employees, contractors, agents, performers, vendors, sponsors, or representatives.

9.1.3 The cancellation, postponement, suspension, modification, interruption, rescheduling, abandonment, or non-performance of an Event.

9.1.4 Any claim by a Customer relating to the Event, including claims relating to ticket validity, refunds, customer experience, venue access, event quality, performer cancellations, service failures, or customer dissatisfaction.

9.1.5 Any injury, illness, death, accident, property damage, theft, loss, assault, security incident, crowd-related incident, or other occurrence arising from or relating to the Event.

9.1.6 Any act, omission, negligence, misconduct, fraud, wilful misconduct, recklessness, or unlawful conduct of the Organiser or any person engaged by the Organiser.

9.1.7 Any intellectual property infringement claim arising from Event content, Event branding, music, recordings, performances, promotional materials, photographs, videos, trademarks, copyrighted works, or other materials used by the Organiser.

9.1.8 Any violation of privacy rights, publicity rights, personality rights, image rights, or data protection obligations by the Organiser.

9.1.9 Any tax liability, tax demand, assessment, penalty, interest, withholding obligation, entertainment tax, GST liability, or statutory payment arising from the Event.

9.1.10 Any investigation, inquiry, notice, proceeding, audit, enforcement action, or regulatory action initiated by any governmental authority relating to the Event.

9.1.11 Any chargeback, payment dispute, refund claim, banking dispute, payment reversal, or fraudulent transaction relating to the Event.

9.1.12 Any breach of the representations, warranties, undertakings, obligations, or commitments provided by the Organiser under this Agreement.

9.2 Scope of Indemnification

The Organiser's indemnification obligations shall include reimbursement of:

9.2.1 Legal fees and attorney fees.

9.2.2 Arbitration costs.

9.2.3 Court costs.

9.2.4 Settlement amounts.

9.2.5 Expert witness fees.

9.2.6 Investigation expenses.

9.2.7 Compliance costs.

9.2.8 Regulatory penalties and fines.

9.2.9 Administrative expenses incurred by Ticpin.

9.2.10 Any other losses or damages suffered by the Ticpin Indemnified Parties.

9.3 Defence of Claims

Where any claim, proceeding, investigation, or action arises that may give rise to indemnification obligations under this Agreement, Ticpin may:

9.3.1 Require the Organiser to assume the defense of such matter.

9.3.2 Participate in such defense at its own expense.

9.3.3 Assume control of the defence if Ticpin reasonably determines that its interests may be adversely affected.

9.3.4 Take any action reasonably necessary to protect its interests, reputation, customers, or business operations.

9.4 Immediate Reimbursement

The Organiser shall reimburse Ticpin for all indemnifiable losses, damages, expenses, and liabilities within seven (7) Business Days of receiving a written demand from Ticpin.

9.5 Recovery Rights

Without limiting any other rights available to Ticpin, Ticpin may recover indemnifiable amounts through:

9.5.1 Deduction from current settlements.

9.5.2 Deduction from future settlements.

9.5.3 Recovery from reserves.

9.5.4 Recovery from deposits.

9.5.5 Direct invoicing to the Organiser.

9.5.6 Any other lawful means available under Applicable Laws.

9.6 No Limitation

The indemnification obligations contained in this Clause shall apply irrespective of whether the relevant claim is brought by a Customer, government authority, performer, venue owner, sponsor, vendor, service provider, employee, contractor, third party, or any other person.

9.7 Separate and Independent Obligation

The Organiser's indemnification obligations shall be separate from and in addition to any other obligations, liabilities, warranties, remedies, or responsibilities contained in this Agreement.

9.8 Mitigation

Nothing in this Clause shall require Ticpin to mitigate losses before seeking indemnification from the Organiser, provided that Ticpin shall act reasonably in protecting its legitimate interests.

9.9 Survival

The obligations contained in this Clause shall survive the cancellation of an Event, suspension of Services, termination of the Organiser account, expiration of this Agreement, and completion of the Event.

9.10 Continuing Obligation

The Organiser acknowledges and agrees that its indemnification obligations shall continue for so long as any claim, dispute, investigation, proceeding, liability, refund obligation, chargeback, regulatory action, or legal action relating to the Event remains unresolved, irrespective of whether this Agreement has terminated.

9.11 Exclusive Responsibility for Event Risks

The Organiser acknowledges that Ticpin acts solely as a technology and ticketing platform and that all operational, legal, commercial, financial, safety, regulatory, venue-related, performer-related, and customer-related risks associated with the Event shall remain the sole responsibility of the Organiser. Accordingly, the Organiser shall indemnify Ticpin against all losses arising from such risks.

9.12 Cumulative Remedies

The indemnification rights contained in this Clause shall be cumulative and shall not limit any rights, remedies, causes of action, or claims available to Ticpin under this Agreement, Applicable Laws, equity, or otherwise.

9.13 Material Provision

The Organiser acknowledges that this Clause constitutes a material provision of this Agreement and that Ticpin has entered into this Agreement in reliance upon the indemnities provided herein.

9.14 Full Indemnity Basis

All indemnification obligations under this Clause shall apply on a full indemnity basis and shall not be limited by any insurance coverage, limitation of liability provision, or other contractual restriction unless expressly stated otherwise in this Agreement.

9.15 Survival and Enforcement

The provisions of this Clause shall survive indefinitely to the extent necessary to permit enforcement of claims arising from events, acts, omissions, breaches, liabilities, disputes, investigations, or obligations occurring during the Term of this Agreement.

10. LIMITATION OF LIABILITY

10.1 Nature of Ticpin Services

The Organiser acknowledges and agrees that Ticpin operates solely as a technology platform facilitating Event discovery, ticketing, registration, payment collection, ticket validation, attendee management, and related services. Ticpin does not organise, host, manage, supervise, control, promote, sponsor, operate, or execute Events and shall not be deemed to be the organiser, promoter, venue operator, employer, contractor, partner, or agent of the Organiser.

10.2 No Responsibility for Event Operations

Ticpin shall not be responsible or liable for:

10.2.1 The planning, organisation, execution, operation, management, supervision, or conduct of any Event.

10.2.2 Venue conditions, venue safety, venue accessibility, venue suitability, or venue compliance.

10.2.3 The conduct, performance, actions, omissions, or behaviour of artists, performers, speakers, exhibitors, vendors, contractors, employees, volunteers, sponsors, or attendees.

10.2.4 Crowd management, security arrangements, emergency response measures, transportation arrangements, accommodation arrangements, food services, or Event logistics.

10.2.5 The quality, content, success, profitability, legality, or outcome of any Event.

10.3 Exclusion of Indirect Damages

To the fullest extent permitted under Applicable Laws, Ticpin shall not be liable for any indirect, incidental, special, punitive, exemplary, consequential, or economic damages arising out of or relating to this Agreement, the Platform, the Services, or any Event.

10.4 Excluded Categories of Loss

Without limiting the generality of Clause 10.3, Ticpin shall not be liable for:

10.4.1 Loss of profits.

10.4.2 Loss of revenue.

10.4.3 Loss of business opportunities.

10.4.4 Loss of anticipated savings.

10.4.5 Loss of sponsorship income.

10.4.6 Loss of goodwill.

10.4.7 Loss of reputation.

10.4.8 Loss of customers.

10.4.9 Loss of data.

10.4.10 Business interruption losses.

10.4.11 Operational losses.

10.4.12 Third-party claims.

10.5 No Guarantee of Ticket Sales

The Organiser acknowledges and agrees that Ticpin does not guarantee:

10.5.1 Any minimum number of ticket sales.

10.5.2 Any minimum attendance.

10.5.3 Any minimum revenue.

10.5.4 Any level of profitability.

10.5.5 Any level of customer engagement.

10.5.6 Any commercial success for the Event.

10.6 Technology Limitations

The Organiser acknowledges that the Platform may occasionally be affected by maintenance activities, internet disruptions, telecommunication failures, software bugs, cybersecurity incidents, payment gateway issues, third-party service interruptions, Force Majeure Events, or other circumstances beyond Ticpin's reasonable control.

10.7 No Warranty of Continuous Availability

Ticpin does not warrant that the Platform shall be uninterrupted, error-free, secure, available at all times, or free from defects.

10.8 Reliance on Third-Party Services

Ticpin utilises third-party service providers including payment gateways, banks, cloud service providers, telecommunications providers, email delivery providers, SMS providers, and infrastructure vendors. Ticpin shall not be liable for failures, delays, interruptions, errors, or losses caused by such third-party service providers.

10.9 Customer Disputes

Any dispute between the Organiser and a Customer relating to the Event, ticket usage, Event quality, Event execution, refunds, venue access, or customer experience shall be the sole responsibility of the Organiser.

10.10 Regulatory Actions

Ticpin shall not be liable for any losses arising from governmental orders, regulatory restrictions, legal proceedings, permit cancellations, venue closures, public health restrictions, or actions of governmental authorities affecting the Event.

10.11 Force Majeure Events

Ticpin shall not be liable for any failure, delay, interruption, suspension, cancellation, or loss arising from Force Majeure Events.

10.12 Maximum Aggregate Liability

Notwithstanding anything contained in this Agreement, the total aggregate liability of Ticpin arising out of or relating to this Agreement, whether in contract, tort, negligence, strict liability, statute, equity, or otherwise, shall not exceed the total Platform Fees actually received by Ticpin from the specific Event giving rise to the claim during the twelve (12) months immediately preceding the event giving rise to such liability.

10.13 Single Claim Cap

Under no circumstances shall Ticpin's liability exceed the amount specified in Clause 10.12 irrespective of the number of claims, causes of action, proceedings, customers, or parties involved.

10.14 Exclusive Remedy

The limitations and exclusions contained in this Clause constitute an essential basis of the bargain between the Parties and shall apply notwithstanding any failure of essential purpose of any remedy provided under this Agreement.

10.15 Organiser Assumption of Risk

The Organiser expressly acknowledges and agrees that it assumes all commercial, operational, financial, legal, regulatory, reputational, customer-related, venue-related, performer-related, and

safety-related risks associated with the Event and that Ticpin's role is limited to providing ticketing and related technology services.

10.16 No Personal Liability

No director, officer, shareholder, employee, consultant, representative, affiliate, or agent of Ticpin shall have any personal liability arising out of or relating to this Agreement, the Platform, the Services, or any Event.

10.17 Independent Limitations

Each limitation, exclusion, disclaimer, and restriction of liability contained in this Clause shall operate independently and shall survive termination, expiration, cancellation, suspension, or completion of the Event.

10.18 Material Provision

The Organiser acknowledges that Ticpin has entered into this Agreement in reliance upon the limitations of liability contained herein and that such limitations constitute a material and fundamental basis of the commercial relationship between the Parties.

10.19 Applicability

The limitations contained in this Clause shall apply regardless of whether Ticpin has been advised of the possibility of the relevant losses, damages, claims, or liabilities.

10.20 Survival

This Clause shall survive termination, expiration, suspension, cancellation, or completion of the Event and shall continue to apply to any claim arising out of or relating to this Agreement.

11. FORCE MAJEURE

11.1 Definition of Force Majeure Event

For the purposes of this Agreement, a "Force Majeure Event" shall mean any event, circumstance, occurrence, condition, or situation beyond the reasonable control of a Party that prevents, delays, hinders, restricts, or renders impossible the performance of its obligations under this Agreement, including but not limited to:

11.1.1 Acts of God, natural disasters, earthquakes, floods, cyclones, hurricanes, storms, lightning, droughts, landslides, or other natural calamities.

11.1.2 Fire, explosion, structural collapse, or other catastrophic events.

11.1.3 Epidemics, pandemics, public health emergencies, disease outbreaks, quarantine measures, or health-related restrictions imposed by governmental authorities.

11.1.4 War, invasion, armed conflict, military action, civil war, terrorism, threats of terrorism, sabotage, or national emergencies.

11.1.5 Riots, civil unrest, public disorder, strikes, lockouts, labor disputes, industrial disturbances, or mass protests.

11.1.6 Governmental actions, executive orders, judicial orders, regulatory restrictions, permit revocations, venue closure orders, curfews, travel restrictions, or prohibitions imposed by any competent authority.

11.1.7 Interruptions or failures relating to telecommunications networks, internet services, cloud infrastructure, hosting providers, payment gateway systems, banking networks, power supply systems, or other essential infrastructure.

11.1.8 Any other event beyond the reasonable control of the affected Party which materially affects the performance of obligations under this Agreement.

11.2 Suspension of Obligations

Where a Party is prevented, delayed, hindered, or restricted from performing any of its obligations under this Agreement due to a Force Majeure Event, such obligations shall be suspended for the duration of the Force Majeure Event to the extent affected thereby.

11.3 No Liability

Neither Party shall be liable to the other Party for any failure, delay, interruption, suspension, loss, damage, claim, penalty, or expense resulting directly or indirectly from a Force Majeure Event.

11.4 Notice of Force Majeure

The Party affected by a Force Majeure Event shall notify the other Party as soon as reasonably practicable after becoming aware of the occurrence of the Force Majeure Event.

Such notice shall include:

11.4.1 A description of the Force Majeure Event.

11.4.2 The obligations affected.

11.4.3 The anticipated duration of the disruption, if known.

11.4.4 Reasonable details regarding mitigation efforts being undertaken.

11.5 Duty to Mitigate

The affected Party shall use commercially reasonable efforts to mitigate the effects of the Force Majeure Event and resume performance of its obligations as soon as reasonably practicable.

11.6 Event Cancellation Due to Force Majeure

Where an Event is cancelled, postponed, suspended, interrupted, restricted, or materially affected due to a Force Majeure Event, the Organiser shall remain responsible for managing the Event and communicating with Customers regarding the Event status.

11.7 Refunds During Force Majeure

Refund eligibility, refund processing, customer remedies, credits, transfers, or other relief measures relating to Events affected by Force Majeure Events shall be governed by:

11.7.1 The Ticpin Refund Policy.

11.7.2 Applicable Laws.

11.7.3 Any directions issued by competent governmental authorities.

11.8 No Guarantee by Ticpin

The Organiser acknowledges that Ticpin shall not be responsible for losses arising from reduced attendance, venue restrictions, travel restrictions, performer cancellations, customer cancellations, reduced ticket sales, regulatory restrictions, or business interruption resulting from a Force Majeure Event.

11.9 Rights of Ticpin

During a Force Majeure Event, Ticpin may, at its sole discretion:

11.9.1 Suspend ticket sales.

11.9.2 Freeze settlements.

11.9.3 Temporarily suspend Event listings.

11.9.4 Process refunds where required.

11.9.5 Issue customer communications.

11.9.6 Implement temporary operational measures necessary to protect Customers, the Platform, or compliance obligations.

11.10 Extended Force Majeure

Where a Force Majeure Event continues for a period exceeding sixty (60) consecutive days and materially affects the ability of either Party to perform its obligations under this Agreement, Ticpin may suspend or terminate the affected Event or this Agreement upon written notice to the Organiser.

11.11 Preservation of Rights

The occurrence of a Force Majeure Event shall not affect:

11.11.1 Any payment obligations accrued prior to the Force Majeure Event.

11.11.2 Any refund obligations of the Organiser.

11.11.3 Any indemnification obligations.

11.11.4 Any confidentiality obligations.

11.11.5 Any rights accrued prior to the occurrence of the Force Majeure Event.

11.12 Survival

The provisions of this Clause shall survive termination, expiration, suspension, cancellation, or completion of the Event to the extent necessary to resolve claims, liabilities, refunds, settlements, disputes, or obligations arising from a Force Majeure Event.

12. TERM AND TERMINATION

12.1 Term

This Agreement shall become effective upon the earliest of:

12.1.1 The Organiser accepting this Agreement electronically.

12.1.2 The Organiser creating an account on the Ticpin Platform.

12.1.3 The Organizer listing an Event on the Platform.

12.1.4 The execution of a written version of this Agreement by both Parties.

The Agreement shall continue in force unless terminated in accordance with this Clause.

12.2 Suspension by Ticpin

Ticpin may immediately suspend an Event, Organiser account, Ticket sales, settlements, or access to the Platform if it reasonably believes that:

12.2.1 The Organiser has breached this Agreement.

12.2.2 The Organiser has provided false, inaccurate, misleading, or incomplete information.

12.2.3 The Event violates Applicable Laws.

12.2.4 The Event poses a risk to Customers, Ticpin, or third parties.

12.2.5 Fraudulent, deceptive, abusive, or suspicious activity is suspected.

12.2.6 Such suspension is necessary to comply with legal, regulatory, or governmental requirements.

12.3 Termination by Ticpin

Ticpin may terminate this Agreement immediately upon written notice if:

12.3.1 The Organiser commits a material breach of this Agreement.

12.3.2 The Organiser repeatedly violates Ticpin policies.

12.3.3 The Organiser engages in unlawful, fraudulent, or prohibited activities.

12.3.4 The Organiser becomes insolvent, enters liquidation, bankruptcy, or ceases business operations.

12.3.5 Continuation of the relationship may expose Ticpin to legal, financial, operational, or reputational risk.

12.4 Termination by Organiser

The Organiser may terminate this Agreement by providing written notice to Ticpin and discontinuing use of the Platform, provided that all outstanding obligations have been fulfilled.

12.5 Effect of Termination

Upon termination of this Agreement:

12.5.1 The Organisers access to the Platform may be suspended or revoked.

12.5.2 Ticpin may remove Event listings and related content.

12.5.3 Outstanding settlements shall be processed subject to applicable deductions, refunds, chargebacks, investigations, and legal obligations.

12.5.4 The Organiser shall remain responsible for all obligations arising prior to termination.

12.6 Survival

Termination of this Agreement shall not affect any accrued rights, liabilities, claims, remedies, or obligations existing prior to termination. The provisions relating to refunds, settlements, Customer Data, Intellectual Property Rights, Confidentiality, Indemnification, Limitation of Liability, Dispute Resolution, Governing Law, and other provisions intended to survive shall remain in full force and effect after termination.

12.7 No Liability for Termination

Ticpin shall not be liable for any loss of revenue, profits, business opportunities, goodwill, customers, or other damages arising from the suspension or termination of this Agreement in accordance with its terms.

13. CONFIDENTIALITY

13.1 Confidential Information

For the purposes of this Agreement, "Confidential Information" shall mean all non-public information disclosed by one Party to the other, whether in written, oral, electronic, visual, or any other form, including business information, financial information, customer information, technical information, pricing arrangements, settlement information, operational processes, trade secrets, marketing strategies, product plans, and proprietary information.

13.2 Confidentiality Obligations

Each Party shall:

13.2.1 Maintain the confidentiality of the other Party's Confidential Information.

13.2.2 Use Confidential Information solely for the purposes of performing its obligations under this Agreement.

13.2.3 Protect Confidential Information using reasonable security measures and safeguards.

13.2.4 Not disclose Confidential Information to any third party except as permitted under this Agreement.

13.3 Permitted Disclosures

A Party may disclose Confidential Information:

13.3.1 To its employees, officers, directors, consultants, auditors, legal advisors, or service providers who have a legitimate need to know such information and are subject to confidentiality obligations.

13.3.2 Where disclosure is required by Applicable Laws, court orders, governmental authorities, or regulatory requirements.

13.3.3 With the prior written consent of the disclosing Party.

13.4 Exclusions

Confidential Information shall not include information which:

13.4.1 Is or becomes publicly available without breach of this Agreement.

13.4.2 Was lawfully known to the receiving Party before disclosure.

13.4.3 Is independently developed without reference to the disclosed information.

13.4.4 Is lawfully obtained from a third party without confidentiality restrictions.

13.5 Customer Data

The Organiser acknowledges that all Customer Data accessed through the Ticpin Platform shall be treated as Confidential Information and shall be protected in accordance with this Agreement and Applicable Laws.

13.6 Return or Destruction

Upon request by the disclosing Party or upon termination of this Agreement, the receiving Party shall promptly return, delete, destroy, or cease using Confidential Information, except where retention is required by Applicable Laws.

13.7 Injunctive Relief

The Parties acknowledge that unauthorised disclosure or misuse of Confidential Information may cause irreparable harm. Accordingly, the affected Party shall be entitled to seek injunctive relief, equitable remedies, or specific performance in addition to any other remedies available under Applicable Laws.

13.8 Survival

The obligations under this Clause shall survive termination or expiration of this Agreement and shall continue for a period of five (5) years thereafter, provided that obligations relating to Customer Data, trade secrets, and proprietary technology shall survive for so long as such information remains confidential.

13.9 Ticpin Rights

Nothing in this Clause shall restrict Ticpin from using aggregated, anonymised, statistical, analytical, or non-personally identifiable data generated through the Platform for business, reporting, operational, research, product improvement, or commercial purposes.

13.10 Material Provision

The Parties acknowledge that the confidentiality obligations contained in this Clause are material provisions of this Agreement and essential to the protection of their respective business interests.

14. DISPUTE RESOLUTION

14.1 Amicable Resolution

The Parties shall use reasonable efforts to resolve any dispute, controversy, claim, disagreement, or issue arising out of or relating to this Agreement, the Platform, the Services, or any Event through good-faith discussions and negotiations.

14.2 Notice of Dispute

A Party seeking to initiate a dispute shall provide written notice to the other Party specifying the nature of the dispute, relevant facts, and the relief sought.

14.3 Negotiation Period

The Parties shall attempt to resolve the dispute through mutual discussions for a period of thirty (30) days from the date of receipt of the dispute notice.

14.4 Arbitration

If the dispute is not resolved within the period specified in Clause 14.3, the dispute shall be finally resolved by arbitration in accordance with the provisions of the Arbitration and Conciliation Act, 1996, as amended from time to time.

14.5 Appointment of Arbitrator

The Parties shall mutually appoint a sole arbitrator, failing which the arbitrator shall be appointed in accordance with the Arbitration and Conciliation Act, 1996.

14.6 Seat and Venue

The seat and venue of arbitration shall be Coimbatore, Tamil Nadu, India.

14.7 Language

The arbitration proceedings shall be conducted in the English language.

14.8 Binding Decision

The decision and award of the arbitrator shall be final and binding upon the Parties and may be enforced by any court of competent jurisdiction.

14.9 Interim Relief

Nothing contained in this Clause shall prevent Ticpin from seeking interim, injunctive, equitable, or protective relief from any court of competent jurisdiction to protect its rights, Confidential Information, Intellectual Property Rights, Customer Data, business interests, or Platform.

14.10 Costs

Unless otherwise determined by the arbitrator, each Party shall bear its own legal costs and expenses relating to the dispute, and the costs of arbitration shall be allocated as determined by the arbitrator.

14.11 Continued Performance

During the pendency of any dispute, the Parties shall continue to perform their respective obligations under this Agreement to the extent reasonably possible.

14.12 Survival

This Clause shall survive the termination, expiration, suspension, cancellation, or completion of this Agreement and shall continue to apply to any dispute arising therefrom.

15. GOVERNING LAW AND JURISDICTION

15.1 Governing Law

This Agreement shall be governed by, construed, and interpreted in accordance with the laws of India, without regard to any conflict of law principles that may require the application of the laws of another jurisdiction.

15.2 Exclusive Jurisdiction

Subject to Clause 14 (Dispute Resolution), the courts situated in Coimbatore, Tamil Nadu, India shall have exclusive jurisdiction over all matters arising out of or relating to this Agreement.

15.3 Compliance with Applicable Laws

The Organiser shall at all times comply with all Applicable Laws, regulations, governmental notifications, judicial orders, licensing requirements, tax laws, consumer protection laws, privacy laws, and other legal requirements applicable to the Event and the Organisers activities under this Agreement.

15.4 Submission to Jurisdiction

The Organiser irrevocably submits to the jurisdiction of the courts and tribunals specified in this Clause and waives any objection based on venue, forum non conveniens, or similar grounds.

15.5 Rights of Ticpin

Notwithstanding anything contained in this Agreement, Ticpin shall be entitled to seek injunctive relief, interim relief, protective orders, or any other appropriate remedy from any court of competent jurisdiction to protect its Intellectual Property Rights, Customer Data, Confidential Information, Platform, business interests, or legal rights.

15.6 Survival

The provisions of this Clause shall survive the termination, expiration, suspension, cancellation, or completion of this Agreement and shall continue to apply to any dispute, claim, proceeding, or matter arising out of or relating to this Agreement.

16. MISCELLANEOUS

16.1 Entire Agreement

This Agreement, together with all schedules, annexure(s), policies, guidelines, amendments, and documents incorporated herein by reference, constitutes the entire agreement between the Parties and supersedes all prior discussions, negotiations, understandings, communications, representations, and agreements relating to the subject matter hereof.

16.2 Amendments

Ticpin reserves the right to amend, modify, update, or revise this Agreement from time to time. Any such amendment shall become effective upon publication on the Ticpin Platform or upon notification to the Organiser. Continued use of the Platform following such amendment shall constitute acceptance of the revised Agreement.

16.3 Relationship of Parties

Nothing contained in this Agreement shall be deemed to create any partnership, joint venture, agency, employment relationship, franchise arrangement, fiduciary relationship, or association between the Parties.

16.4 Independent Contractors

The Parties are independent contractors and neither Party shall have authority to bind, represent, or create obligations on behalf of the other Party except as expressly provided in this Agreement.

16.5 Assignment by Ticpin

Ticpin may assign, transfer, novate, delegate, subcontract, or otherwise dispose of any of its rights or obligations under this Agreement to any Affiliate, successor, purchaser, or third party without the consent of the Organiser.

16.6 Assignment by Organiser

The Organiser shall not assign, transfer, sublicense, delegate, or otherwise dispose of any rights or obligations under this Agreement without the prior written consent of Ticpin.

16.7 Waiver

No waiver of any right, remedy, breach, or default under this Agreement shall be effective unless made in writing by the Party granting such waiver. Failure or delay in exercising any right shall not constitute a waiver thereof.

16.8 Severability

If any provision of this Agreement is held to be invalid, illegal, unenforceable, or contrary to Applicable Laws by a court or tribunal of competent jurisdiction, the remaining provisions shall remain valid and enforceable to the fullest extent permitted by law.

16.9 Cumulative Remedies

The rights and remedies available under this Agreement are cumulative and in addition to any rights or remedies available under Applicable Laws.

16.10 Electronic Acceptance

The Organiser acknowledges and agrees that acceptance of this Agreement through electronic means, including clicking an "Accept" button, creating an Organiser account, listing an Event, or using the Platform, shall constitute a valid and legally binding agreement.

16.11 Electronic Records

The Organiser agrees that electronic records, transaction logs, system-generated reports, audit logs, communications, emails, settlement reports, ticketing records, and other records maintained by Ticpin shall constitute valid business records and may be relied upon in any legal or regulatory proceeding.

16.12 Notices

Any notice, request, demand, consent, approval, or communication under this Agreement shall be made in writing and may be delivered through email, Organiser Dashboard notifications, courier, registered post, or any other communication method approved by Ticpin.

16.13 Ticpin Contact Details

For the purposes of this Agreement, notices to Ticpin shall be addressed to:

Velrona Technologies Private Limited

1st Floor, 22B Kambar Street,

Kamatchipuram, Ondipudur,

Coimbatore – 641016, Tamil Nadu, India.

Email: support@ticpin.in

16.14 Organiser Contact Details

The Organiser shall ensure that all contact details provided to Ticpin remain accurate and updated. Notices sent to the last available contact details shall be deemed properly delivered.

16.15 Publicity Rights

The Organiser grants Ticpin the right to identify the Organiser as a user of the Platform and to use the Organiser's name, Event name, logos, Event creatives, promotional materials, and publicly available information for marketing, promotional, portfolio, reporting, investor relations, and business development purposes.

16.16 Platform Policies

The Organiser acknowledges and agrees that all policies, operational guidelines, settlement policies, privacy policies, refund policies, community guidelines, technical standards, and other policies published by Ticpin from time to time shall form an integral part of this Agreement.

16.17 Audit and Verification Rights

Ticpin may, at any time, request information, documents, licenses, permits, tax registrations, settlement information, banking details, compliance records, or other information reasonably necessary to verify compliance with this Agreement.

16.18 Compliance Assistance

The Organiser shall promptly provide all information, documentation, declarations, certifications, and assistance reasonably requested by Ticpin for legal, regulatory, operational, compliance, risk management, customer protection, or audit purposes.

16.19 Survival

Any provision of this Agreement which by its nature is intended to survive termination, including provisions relating to settlements, refunds, Customer Data, Intellectual Property Rights, Confidentiality, Indemnification, Limitation of Liability, Dispute Resolution, Governing Law, and Miscellaneous matters, shall survive termination or expiration of this Agreement.

16.20 Counterparts

This Agreement may be executed or accepted electronically and in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same agreement.

16.21 No Third-Party Beneficiaries

Except as expressly provided in this Agreement, no person or entity other than the Parties shall have any rights, benefits, or remedies under this Agreement.

16.22 Interpretation

Headings are inserted for convenience only and shall not affect the interpretation of this Agreement. Words importing the singular shall include the plural and vice versa, and references to one gender shall include all genders where the context permits.

16.23 Language

This Agreement has been drafted in the English language and the English version shall prevail in the event of any conflict with any translation or interpretation.

16.24 Binding Effect

This Agreement shall be binding upon and inure to the benefit of the Parties and their respective successors, legal representatives, and permitted assigns.

16.25 Material Terms

The Organiser acknowledges that the provisions relating to Platform Fees, settlements, refunds, Customer Data ownership, Intellectual Property Rights, Confidentiality, Indemnification, Limitation of Liability, and Dispute Resolution are material provisions of this Agreement and form the basis upon which Ticpin provides access to the Platform and Services.

SCHEDULE D PRE-EVENT COMPLIANCE CHECKLIST

S.NO	Category	Compliance Requirement	Minimum Standard
1	Ticketing	Event published with accurate ticket categories and pricing	Mandatory
2	Event Information	Event date, venue, timings and description finalized	Mandatory
3	Venue Layout	Venue map and entry/exit plan finalized	Mandatory
4	Venue Capacity	Venue capacity disclosed and legally compliant	Mandatory
5	Parking	Adequate parking arrangements available	Recommended
6	Accessibility	Accessibility arrangements for persons with disabilities	Recommended
7	Entry Management	Separate and clearly marked entry points where applicable	Mandatory
8	Signages	Clear directional and safety signages installed	Mandatory
9	Security	Adequate security personnel deployed	Mandatory
10	First Aid	First aid facilities available on site	Mandatory
11	Emergency Exits	Emergency exits clearly marked and operational	Mandatory
12	Crowd Management	Crowd management plan in place	Mandatory
13	Washrooms	Adequate washroom facilities available	Mandatory

14	Drinking Water	Drinking water facilities available	Mandatory
15	Food & Beverage	Food service arrangements disclosed where applicable	Optional
16	Customer Helpdesk	On-site customer support/helpdesk available	Recommended
17	Artist / Speaker Approvals	Required agreements and permissions obtained	Mandatory
18	Music Licenses	Applicable copyright and music licenses obtained	Mandatory
19	Government Permissions	All permits, licenses and approvals obtained	Mandatory
20	Insurance	Appropriate insurance coverage obtained where applicable	Recommended
21	Medical Support	Medical support and emergency response arrangements available where required	Recommended
22	Refund Policy	Refund terms communicated to Customers	Mandatory
23	Customer Communication	Event instructions communicated to attendees	Mandatory
24	Venue Coordinates	Accurate venue location provided on Platform	Mandatory
25	Compliance Declaration	Organizer confirms compliance with Applicable Laws	Mandatory

You hereby agree and acknowledge to comply with the Minimum Standard provided in this checklist in relation to the Event.

Executed on behalf of the Organiser by its Authorized Signatory:

Signatory email:

Signed at:

Signed with IP:

VELRONA TECHNOLOGIES PRIVATE LIMITED

Registered Address: 1st Floor 22B Kambar Street, Kamatchipuram, Ondipudur, Coimbatore - 641016

CIN: U73100TZ2025PTC035834